Hawaii obviously does not contend that its law promotes an analogous interest. So its law and the default rules in the Black Codes are not "'relevantly similar.'" *Bruen*, 597 U. S., at 29. Most would take that as a compliment.

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Applying old principles to new circumstances is not always easy. This case, however, is not hard. While most Hawaiians might prefer that no one carry firearms in public places, a majority's opposition to a constitutional right is not a permissible basis for restricting it. After all, "[t]he very purpose of a Bill of Rights was to withdraw certain subjects from the vicissitudes of political controversy" and "to place them beyond the reach of majorities and officials." *West Virginia Bd. of Ed.* v. *Barnette*, 319 U. S. 624, 638 (1943).

JUSTICE KAGAN, dissenting.

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I would uphold the challenged Hawaii law because, as JUSTICE JACKSON shows in Part III of her opinion, it is a modern-day analogue of colonial and founding era laws that similarly prohibited carrying firearms onto private property without the owner's affirmative consent. See *post*, at 243–250. The "how" is identical: The new law, just like the old ones, sets a default rule against gun carry that a private landowner may reverse. The "why" is sufficiently close. Both sets of laws respond to the dangers and harms that someone with a gun can cause on another person's property. That the old laws had a special (though by no means exclusive) concern with poaching does not matter. "The regulatory

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conduct. It is instead *why* they targeted that conduct—that is, what "reason" justified the restriction. *United States* v. *Rahimi*, 602 U. S. 680, 692 (2024). For the 18th-century laws, it was the risk of harm to persons and property caused by hunting. For the Black Codes, it was the ability of blacks to provide for themselves without working on plantations. Because the two sets of laws did not share an analogous justification, they do not stand for the same regulatory principle.

challenges posed by firearms today are not always the same as those that preoccupied" earlier generations. *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1, 27 (2022). The key question is whether the challenged regulation is "consistent with the *principles* that underpin our regulatory tradition." *United States* v. *Rahimi*, 602 U. S. 680, 692 (2024) (emphasis added). Here, the challenged law is consistent with those principles because it reflects, as the old laws did, the perceived "abuses, damages and inconveniences" that can be caused by persons carrying guns "on other people's lands." 1721 Pa. Laws ch. 246, § 3 (preamble), in 3 The Statutes at Large of Pennsylvania From 1682 to 1801, p. 255 (J. Mitchell & H. Flanders eds. 1896). That conclusion is enough for me to resolve this case, without addressing *Bruen*'s step-one inquiry or the use at step two of Louisiana's Black Code. I therefore respectfully dissent.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, dissenting.

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Today the Court declares unconstitutional Hawaii's efforts to protect the rights of its residents—both those who wish to carry guns and those who prefer that guns are not carried on their private property without their express permission. To hear the majority tell it, Hawaii's law is a blatant attempt to end-run our Second Amendment precedents. But the statute at issue does no such thing. Instead, it fairly applies a first principle of property law—the right to exclude—and does no harm to the Second Amendment.

The majority thinks otherwise; it reaches today's result by purporting to apply the test we established in *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1 (2022). But the majority gets both the *Bruen* test and its application wrong. Hawaii's law does not implicate the Second Amendment because there is no right to carry a gun onto private property without consent (as all agree), and the Constitution does not dictate the form of that required consent. And